

		Floraville’s own quiet title and declaratory relief causes of action fail for the same reasons as stated above. Floraville cannot establish for the purposes of summary judgment that there is no dispute of material fact that the easement was extinguished by a prior judgment, merger, or adverse possession. Tentative Ruling: Defendant/Cross-Complainant Floraville, LLC’s Motion for Summary Judgment on the Cross-Complaint, or in the alternative, summary adjudication is DENIED. <i>Temple Hill’s MSJ - Complaint</i> In order to prevail on its Motion, Temple Hills must prove there is no dispute of material fact as to its easement not being extinguished by a prior judgment, merger, or adverse possession. However, Temple Hills has failed to satisfy its initial burden of demonstrating there is no dispute as to whether Floraville adversely possessed the area including the easement. There is a dispute of material fact as to whether Floraville’s or its predecessor’s use of the property interfered with Temple Hills or its predecessor’s use of the easement or whether the use had an appearance of permanency. Thus, Temple Hills has not demonstrated it is entitled to prevail on its claims to quiet title to the easement or have the easement declared as valid. Accordingly, summary adjudication is not proper as to either of its causes of action. Tentative Ruling: Plaintiff/Cross-Defendant Temple Hills Land Company, LLC’s Motion for Summary Judgment on the Complaint, or in the alternative, summary adjudication is DENIED. Moving parties to give notice.
15	Peoples vs. Park Anaheim Healthcare, LLC 2023-01364852	Motion for Summary Judgment and/or Adjudication <i>O/C Notice of Settlement filed 04/30/26</i>

16	Randall vs. Morena 2021-01193717	Motion for Order to Stay Proceedings The Court sets this matter for oral arguments at 1:45 PM. Parties may appear remotely.